

****February 17, 2025****

****Sanction for Violation of GDPR****

The National Supervisory Authority for Personal Data Processing completed an investigation in January 2025 regarding the operator Meedea Construct Prest SRL and found violations of the provisions of Article 5 paragraph (1) letters a), b), and f) and paragraph (2) in conjunction with Articles 6 and 9 of Regulation (EU) 2016/679.

As such, the operator was sanctioned: with a fine of 9,949.6 lei (equivalent to the amount of 2,000 euros).

The investigation was initiated following a complaint from an individual who reported that the operator Meedea Construct Prest SRL (former employer) disclosed to a third party documents related to their employment (a copy of the individual employment contract, the fitness sheet, a medical certificate) and that the third party used them in a court dispute.

During the investigation, it was found that the operator Meedea Construct Prest SRL disclosed without complying with legal conditions, personal data and health information belonging to the complainant (former employee), such as: name, surname, address, series and number of identity document, personal identification number, position/profession/occupation, signature, date of birth, home address, medical conditions, signature, and stamp of the doctor.

In this context, the provisions of Article 5 paragraph (1) letters a), b), and f) and paragraph (2), Articles 6 and 9 of the GDPR were violated regarding the principles and legality of processing personal data, and the operator was sanctioned with a fine.

Additionally, based on the provisions of Article 58 paragraph (2) letter b) of Regulation (EU) 2016/679, a corrective measure was imposed on the operator to ensure compliance with the GDPR regarding the operations of collecting and further processing personal data, in order to avoid accessing and disclosing personal data processed in violation of the principles and conditions of legality; in this regard, appropriate security and confidentiality measures will be considered, including the establishment of written procedures and regular training of individuals processing data under the authority of the operator.

****Legal and Communication Department****

****N.S.A.P.D.C.P****